

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 42-003
Amendment to Title 2 of the Chickasaw Nation Code
(Chickasaw Nation Ethics Commission)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations creating the Chickasaw Nation Ethics Commission and wishes to amend those rules.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature authorizes and approves that the provisions of this Resolution shall become effective upon publication in the Chickasaw Nation Code

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendment to Title 2, Chapter 7, Article A, Section 2-701.1 of the Chickasaw Nation Code, all of sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 2-701.1

COMMISSION CREATED.

A. There is hereby created a Chickasaw Nation Ethics Commission ("Commission"). The Commission shall be comprised of three (3) members who shall elect a Chairperson from among their number at their first meeting in each calendar year. Members shall be Chickasaw Citizens in accordance with tribal membership provisions included in Article II, Section 1 of the Constitution. Commissioners shall be nominated and confirmed in accordance with Title 2, Chapters 10 & 11, Article A of the Code of the Chickasaw Nation, and Article XI, Section 2 of the Constitution. The Commission shall be within the ~~Judicial~~ **Executive** Department; however, the Commission shall make its decisions without input, advice or interference from any of the three departments of tribal government, any officer or employee thereof, or any other person not sitting on the Commission.

B. Commissioners shall serve for a term of three (3) years with an anniversary date of October 1. Commissioners shall be reappointed, or a replacement shall be appointed, at least sixty (60) days prior to the expiration of the term. Once the full Commission is seated, Commissioners shall draw lots to determine which of the members shall serve a one (1) year term, to be called Seat 1, two (2) year term, to be called Seat 2, or three (3) year term, to be

called Seat 3. Thereafter, all members shall serve full three (3) year terms, with one (1) seat becoming vacant each subsequent year. (PR41-012, 06/21/2024)

C. Members of the Commission may resign at any time but may be removed only for cause. Vacancies occurring on the Commission shall be filled in the same manner as described and defined in Subsection A above. Vacancies shall be filled for the remainder of the respective term.

D. No current public official or employee of the Nation shall serve on the Commission. No Commissioner shall be eligible for elected office for one (1) ~~years~~ **year** after completing his term.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendment to Title 2, Chapter 7, Article A, Section 2-701.2 of the Chickasaw Nation Code, all of sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 2-701.2

APPROPRIATION, COMPENSATION, STAFF.

A. The Commission shall receive an annual appropriation included in the annual tribal budget sufficient to enable it to perform its duties as set forth herein. Any funds appropriated to the Commission which remain unspent at the end of the fiscal year shall be returned to the General Fund.

B. The Commission shall present its proposed budget through the ~~Judicial~~ **Executive** Department to the office of Governor of the Chickasaw Nation in accordance with established protocol.

C. Commissioners shall receive reimbursement for travel, lodging and meals while on official business as provided by Chickasaw Nation policy; otherwise, Commissioners shall not be compensated.

D. The Commission may employ ~~an office manager~~ **or retain staff sufficient to support its operations** and maintain an office in a location provided by the ~~Judicial~~ **Executive** Department.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendment to Title 2, Chapter 7, Article A, Section 2-701.5 of the Chickasaw Nation Code, all of sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 2-701.5

ENFORCEMENT.

All decisions issued by the Commission shall be enforced by the ~~Executive Department~~ **appropriate department**.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendment to Title 2, Chapter 7, Article A, Section 2-701.6(A) of the Chickasaw Nation Code, all of sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 2-701.6

APPEALS.

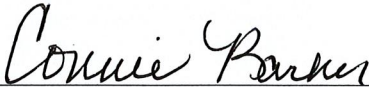
A. The Chickasaw Nation District Court shall have jurisdiction to hear all appeals from decisions of the Commission ~~involving public officials, candidates for public office, applicants for voting privileges and employees of the Nation.~~

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendment to Title 2, Chapter 7, Article A, Section 2-702.6(B)(3) of the Chickasaw Nation Code, all of sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

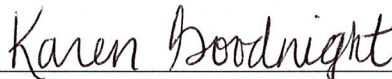
SECTION 2-702.6 **SANCTIONS; PENALTIES; LEGAL LIABILITIES.**

3. Any civil penalties imposed hereunder shall be collected in any manner authorized for recovery of debts or obligations owed to the Nation and shall be paid into the court ~~general~~ **general revenue** fund of the Nation.

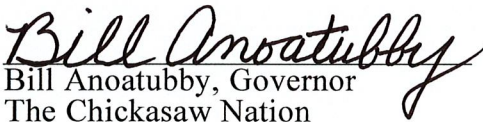
Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on March 21, 2025, by a vote of 12 ayes, 0 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAR 21 2025

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Amendment to Title 2 of the Chickasaw Nation Code
(Chickasaw Nation Ethics Commission)

Explanation:

This resolution amends the Chickasaw Nation Code by moving the Chickasaw Nation Ethics Committee from the Judicial Department to the Executive Department.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature